

25SMCV00898 25SMCV00898

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Case Number: 25SMCV00898 Hearing Date: August 17, 2026 Dept: O

TENTATIVE RULING

August 17, 2026

25SMCV00898 (Zakharov v. Alfelaj, et. al.)

RELEVANT BACKGROUND

On February 21, 2025, plaintiffs

Sergei Zakharov and Svetlana Zakharova (Plaintiffs) filed their initial complaint. Plaintiffs filed their first amended complaint (FAC) on October 31, 2025, against defendants Muhyee Aldeen Rasheed Alfelaj Aka Muhyee A. Alfelaj Aka Muhyee R. Alfelaj and Iman Milka Alfelaj, Cotrustees of The Alfelaj Family Trust (Defendants), and Does 1-20.

On January 20, 2026, the Court granted Plaintiffs' order for service by publication. Plaintiffs caused the summons to be published on February 10, February 17, February 24, and March 3, 2026. (Croddy Decl. ¶ 3, Ex. A.)

On February 27, 2026, Defense counsel sent a formal written letter to Plaintiffs' prior counsel of record advising that Defendants reside at 26 Rue Dar Fadhal, La Soukra, Ariana Governorate, Tunisia, and that any service of process must comply with the Hague Service Convention. (Id. ¶ 4; Ex. B.) On that same date, Plaintiffs' former counsel forwarded that letter and the accompanying email chain directly to Plaintiffs' current counsel of record. (Id. ¶ 6; Ex. D.)

On March 4, 2026,
Plaintiffs filed Proof of Publication.

INSTANT MOTION

On April 6, 2026, Defendants filed the instant motion to quash service of summons. Plaintiffs filed an opposition, and Defendants filed a reply.

DISCUSSION

I.

MOTION

TO QUASH - SERVICE OF SUMMONS

A.

Service

by Publication, International Service, and The Hague Service Convention

“The Hague Service Convention is a multilateral treaty formulated in 1964 by the Tenth Session of the Hague Conference of Private International Law. The 1964 version was intended to provide a simpler way to serve process abroad, to assure defendants sued in foreign jurisdictions would receive actual and timely notice of suit, and to facilitate proof of service abroad. [Citation.]” (Kott v. Superior Court (1996) 45 Cal.App.4th 1126, citing Volkswagenwerk Aktiengesellschaft v. Schlunk (1988) 486 U.S. 694, 698.)

The Hague Service Convention applies

“in all cases, in civil or commercial matters, where there is occasion to transmit a judicial or extrajudicial document for service abroad,” the only exception is “where the address of the person to be served with the document is not known.” (Hague Service Convention, art 1.)

“In California, Code of Civil

Procedure section 413.10 governs service of summons within and without the United States. This section provides in pertinent part: ‘Except as otherwise provided by statute, a summons shall be served on a person: ‘...’(c) Outside the United States, as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds

that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the 'Service Abroad of Judicial and Extrajudicial Documents' in Civil or Commercial Matters (Hague Service Convention).” (Id. at p. 1135.) “Failure to comply with the Hague Service Convention procedures voids the service even though it was made in compliance with California law.” (Id. at p. 1136.)

“The only method of service under California law which does not require the transmission of documents abroad, and consequently does not implicate the Hague Service Convention, is service of summons by publication where the party's address remains unknown during the publication period despite the exercise of reasonable diligence.” (Ibid., citing Hague Service Convention, art 1 [Convention does not apply where address of the person to be served is not known] and *Quaranta v. Merlini* (1987) 192 Cal.App.3d 22, 30.)

“A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: [¶] (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action. [¶] (2) The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property.” (Code Civ. Proc., § 415.50.) Notably, “[t]he order shall direct that a copy of the summons, the complaint, and the order for publication be forthwith mailed to the party if his or her address is ascertained before expiration of the time prescribed for publication of the summons.” (Id., subd. (b); emphasis added.)

Here, Defendants assert two grounds to quash service: (1) The Hague Convention on Service applies because Defendants are permanent residents and domiciliaries of the Republic of Tunisia, and Plaintiffs have never initiated any attempt to serve Defendants through the Convention's prescribed channels; and (2) service by publication under Code of Civil Procedure section 415.50 is not a lawful method of service where the plaintiff can with reasonable diligence effectuate service by another method, and Plaintiffs'

current counsel received Defendants' complete Tunisian residential address in writing on February 27, 2026, before the last publication date and six days before the Proof of Publication was filed.

In opposition, Plaintiffs concede that "when former Plaintiffs' counsel Michael Koenig received the erroneous February 27, 2026 email from Defendants' counsel, he forwarded the correspondence to Mr. Denis, Plaintiffs' attorney of record." (Opp. at p. 23-25.)

Next, Plaintiffs highlight that, pursuant to Code of Civil Procedure section 415.50, subdivision (b), the order for service by publication provides, in part:

IT IS

FURTHER ORDERED that a copy of said summons, citation, notice of hearing, or First Amended Complaint and of said complaint or petition in this action be forthwith deposited in the United States Post Office, postage prepaid, directed to said defendant, respondent, or citee if his address is ascertained before expiration of the time prescribed for the publication of this summons, citation or notice of hearing. A declaration of this mailing, or of the fact that the address was not ascertained, must be filed at the expiration of the time prescribed for the publication.

(See 1/20/26
Order for Publication at p. 1 (emphasis added).)

Plaintiffs contend that they complied with this requirement because, on March 20, 2026, they mailed copies of the summons, first amended complaint, and publication orders to the Defendants via the United States Postal Service at the address in Tunisia provided by Defendants' counsel. The Court disagrees.

As Defendants point out in reply, Plaintiffs failed to comply with the order for publication and Code of Civil Procedure section 415.50(b). Again, the order and section 415, subdivision (b) requires that "a copy of said summons, citation, notice of hearing, or First Amended Complaint and of said complaint or petition in this action be forthwith deposited in the United States Post Office, postage prepaid, directed to said defendant, respondent, or citee if his address is ascertained before

expiration of the time prescribed for the publication of this summons, citation or notice of hearing.” Also, the order itself further provides that, “A declaration of this mailing ... must be filed at the expiration of the time prescribed for the publication.” (See 1/20/26 Order for Publication at p. 1; emphasis added.)

Here,

upon learning of

Defendants’ address, Plaintiffs did not mail copies of the summons and complaint “forthwith” to that address as required. Plaintiffs were notified of Defendants’ Tunisia address on February 27, 2026, but waited until March 20, 2026, to mail copies of the summons and complaint to that address. (Croddy Decl. ¶ 4-6, Ex. B, D.) Waiting twenty days to mail copies of the summons and complaint is not “forthwith.” Moreover, the Court is not persuaded by Plaintiffs’ argument that their counsel did not receive the email until March 5, 2026. (Denis Decl., ¶¶ 2-5). Even if that were true, waiting fifteen days to mail the summons and complaint is still not “forthwith.” Additionally, the declaration of the mailing was not filed at the expiration of the time prescribed for the publication as required by the order for publication. Thus, the Court finds that service was defective.

Accordingly, Defendants’ motion to

quash service is GRANTED. Moving parties to give notice.